

In the Court of Common Pleas
County of _____
_____ Judicial District



Commonwealth of Pennsylvania
v

Docket No: CP- - - -20

Petition for Expungement Pursuant to Pa.R.Crim.P. 790

AND NOW, the petitioner avers the following and requests that this petition for expungement pursuant to Pa.R.Crim.P. 790 be granted for the reasons set forth below.

PETITIONER INFORMATION						
Full Name:		DOB: 1991-04-17		Social Security Number:		
Address:		Alias(es):				
Apartment 4321-B						
PA						
CASE INFORMATION						
List name, address of the Judge of the Court of Common Pleas or Philadelphia Municipal Court who accepted the guilty plea or heard the case:						
Judge:			Address:			
Philadelphia Municipal Court or Court of Common Pleas Docket Number: 0123-45-2026-CR-900123.00-AB-CDE/2201			Offense Tracking Number (OTN):			
Name of Arresting Agency: Example Police Department			Date of Arrest: 2019-03-08		Date on Complaint: 2019-03-08	
List name and mailing address of the affiant as shown on the complaint, if available:						
Name of Affiant:			Address:			
List specific charges, as they appear on the charging document, to be expunged and the disposition of each charge (please attach additional sheet(s) of paper if necessary):						
PA Statute (Title)	Section	Subsection	Statute Description	Counts	Grade	Disposition
If the sentence imposed included a fine, costs or restitution, has the amount due been paid?				☐ Yes ☐ No		
List the reason(s) for the expungement (please attach additional sheet(s) of paper if necessary):						
☐ I have attached a copy of my Pennsylvania State Police Criminal History which I have obtained within 60 days before filing this petition.						
☐ I have not attached a copy of my Pennsylvania State Police Criminal History. State reason(s) below:						

When this petition is filed with the Clerk of Courts, the petitioner shall serve a copy upon the attorney for the Commonwealth.

I, the undersigned petitioner, avers that the facts set forth in this petition are true and correct to the best of my personal knowledge or information and belief, and are made subject to the penalties of unsworn falsification to authorities under 18 Pa.C.S § 4904.

Signature of Petitioner

Date

CERTIFICATE OF SERVICE

Pennsylvania Rules of Criminal Procedure 576, 576.1 and 790

Petitioner: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

Docket number: 0123-45-2026-CR-900123.00-AB-CDE/2201

DO NOT SIGN OR DATE UNTIL SERVICE HAS ACTUALLY OCCURRED.

I certify that, concurrently with filing, I served the petition and included documents on the attorney for the Commonwealth and the court administrator as stated below. Add a service sheet with the same details for every additional recipient.

Name of Commonwealth recipient served:

.....

Service address of Commonwealth recipient served:

.....

Telephone number of Commonwealth recipient served:

.....

Court administrator name:

.....

Court administrator service address:

.....

Court administrator telephone number:

.....

Manner of service (identify each recipient if different):

.....

Date of service (identify each recipient if different):

.....

Signature of petitioner after service:

Date signed:

Printed name: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

Use only a permitted method. Email or fax needs the applicable authorization; follow Rule 576.1 for authorized electronic filing. Never invent service facts.

Commonwealth of Pennsylvania

v.

IN THE COURT OF COMMON PLEAS OF

COUNTY,
PENNSYLVANIA

CRIMINAL DIVISION

DOCKET NO: 0123-45-2026-CR-900123.00-AB-CDE/2201

ORDER

AND NOW, this ____ day of _____, 20____, after consideration of the
_____ presented by _____,
it is ORDERED that the Petition/Motion is _____.

☐ Except as provided by law, all criminal justice agencies upon which this order is served shall expunge and destroy the defendant's arrest record, including the criminal history record information, pertaining to the captioned proceedings.

☐ In accordance with Pa.R.Crim.P. 320, the criminal charges in the above-captioned case specified below are dismissed and the defendant's arrest records regarding these charges shall be expunged except as provided by law.

☐ Except as provided by law, all criminal justice agencies upon which this order is served shall expunge and destroy the official and unofficial arrest and other criminal records pertaining to the captioned proceedings in accordance with Section 119 of The Controlled Substance, Drug, Device and Cosmetic Act (35 P.S. § 780-119).

The information required under Pa.R.Crim.P. 790 appears on the attached page(s) which is hereby incorporated into this ORDER by reference.

BY THE COURT:

Pursuant to Pa.R.Crim.P. 790, the following information is provided:

1. Petitioner Name: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III
2. Alias(es): _____
3. Petitioner's Address: _____
4. Petitioner's Date of Birth: 1991-04-17
5. Petitioner's Social Security Number: _____
6. Name and address of the judge of the Court of Common Pleas or Philadelphia Municipal Court who accepted the guilty plea or heard the case:
7. Name and mailing address of the affiant as shown on the complaint, if available:
8. Docket Number: 0123-45-2026-CR-900123.00-AB-CDE/2201
9. Offense Tracking Number (OTN): _____
10. The date on the complaint, or the date of arrest, and if available, the criminal justice agency that made the arrest:

Date on citation or complaint 2019-03-08; date of arrest 2019-03-08; arresting agency Example Police Department
11. The specific charges, as they appear on the charging document, to be expunged and applicable dispositions (attach additional sheets if needed):
12. If the sentence includes a fine, costs, or restitution, whether the amount due has been paid: _____
13. The reason for expungement:
14. The criminal justice agencies upon which certified copies of the order shall be served:



Motion to Proceed In Forma Pauperis

Commonwealth of Pennsylvania
v.

County Clerk of Courts

Address:

Telephone:

Docket No: 0123-45-2026-CR-900123.00-AB-CDE/2201

I, _____, residing at _____, request that this
Court permit me to proceed in forma pauperis (without payment of the filing fee). In support of this I state the following:

1. I am the defendant in the above-captioned matter and because of my financial condition am unable to pay the fee for filing this action.
2. I am unable to obtain funds from anyone, including my family and associates, to pay the costs of litigation.
3. I represent that the information below relating to my ability to pay the fees and costs is true and correct:

Employment Information

If you are presently employed, state employer:

Name: _____
Address: _____
Salary or Wages per Month: _____ Type of Work: _____

If you are presently unemployed, state:

The date of my last employment was: _____
Salary or Wages per Month: _____ Type of Work: _____

Other Income Received Within The Past Twelve Months

Spouse's name: _____

If spouse is presently employed, state employer:

Name: _____
Address: _____
Salary or Wages per Month: _____ Type of Work: _____

If spouse is presently unemployed, state:

The date of spouse's last employment was: _____
Salary or Wages per Month: _____ Type of Work: _____

Contributions from Children: _____

Contributions from Parents: _____

Other Contributions: _____

Assets/Property Owned

Cash:	_____	Certificates of Deposit:	_____
Checking Account:	_____	Stocks and Bonds:	_____
Savings Account:	_____	Other:	_____

Real Estate:

Do you own a home or other real property? If so, please provide for each:

Address:	_____		
Assessed Value:	_____	Amount Owed:	_____

Motor Vehicle:

Do you own an automobile? If so, please provide for each:

Make:	_____		
Model:	_____	Year:	_____
Cost:	_____	Amount Owed:	_____

Debts and Obligations

Rent:	_____	Loans:	_____
Mortgages:	_____	Other:	_____

(Other than those listed above)

Persons Dependent Upon Me For Support

Spouse's Name: _____

Ages of Minor Children, if any: _____

Other Persons (non-minor)

Name:	_____	Relationship:	_____
Name:	_____	Relationship:	_____

I, _____, understand that I have a continuing obligation to inform the Court of improvement in my financial circumstances which would permit me to pay the costs incurred herein.

I, _____, verify that the statements made in this petition are true and correct. I understand that false statements herein are made subject to penalties of 18 Pa.C.S. § 4904, relating to unsworn falsification to authorities.

☐ I certify that this filing complies with the provisions of the Public Access Policy of the Unified Judicial System of Pennsylvania: Case Records of the Appellate and Trial Courts that require filing confidential information and documents differently than non-confidential information and documents.

Signature of Petitioner

Date
